
Journal

1986 PLD 10

Court

FEDERAL SHARIAT COURT

Date

1983-12-13

Appeal No.

CRIMINAL APPEAL NO. 67/L OF 1982

Judge

CH. MUHAMMAD SIDDIQ

Parties

ABDUL RASHID (APPELLANT) VERSUS MST. SAFTA BIBI (RESPONDENT)

Lawyers

NIMAT KHAN FOR APPELLANT. SHUJAUDDIN QURESHI FOR RESPONDENT. GHULAM SIDDIQUE AWAN FOR THE COMPLAINANT.

Statutes

OFFENCE OF QAZF (ENFORCEMENT OF HADD) ORDINANCE (VIII OF 1979) - S. 3 WEST PAKISTAN FAMILY COURTS ACT (XXXV OF 1964) - SS. 5 AND SCHEDULE MUHAMMADAN LAW

Judgment

Judgment

The present criminal appeal arises out of the following facts and circumstances :

The marriage between Abdul Rashid appellant and Mst. Safia Bibi, respondent took place on 4-7-1980. On 30-5-1981 Mst. Safia Bibi gave birth to a female child. Subsequently, on 19-12-1981, she was divorced by her husband, Abdul Rashid, appellant. She filed in the Court of Judge Family Court, Faisalabad, a suit for dowry and maintenance (Exh. P. A.) of her female child, etc. In his written statement (Exh. P. B.) her husband Abdul Rashid, appellant disowned the said female child and made allegation of Zina against his wife Mst. Safia, respondent. A Punchayat was convened at the house of Malik Muhammad Din, Councillor of Chak No. 124/J. B. Hssanabad (Chuhar Majra), Faisalabad, where the present appellant alongwith his father is alleged to have said that he was not father of the female child born to Mst. Safia, respondent and that the same was the result of Zina committed by her.

2. On 4-5-1982 Mst. Safia Bibi through her father Barkai Ali as her special attorney filed a complaint under section 3 read with section 7 of the Offence of Qazf (Enforcement of Hadd) Ordinance, 1979 (hereinafter referred to as the Ordinance), against Abdul Rashid, accused appellant in the Court of Sessions Judge, Faisalabad. She was directed to present her complaint before the Ilaqa Magistrate. Accordingly, she presented the said complaint before the Ilaqa Magistrate. Since the matter was exclusively triable by the Court of Sessions, the learned Magistrate sent up the case to the Court of Sessions Judge, Faisalabad for trial, who entrusted the same to the Additional Sessions Judge, Faisalabad for trial.

After recording the preliminary evidence the learned Additional Sessions Judge found a prima facie case against Abdul Rashid, accused and, therefore, issued warrants in the sum of Rs. 2,000 against him. Mst. Safia complainant produced five witnesses in support of her complaint. She herself appeared as P. W. 1 and deposed that she was married to the accused Abdul Rashid on 4-7-1980 and her rukhsati took place on the same day. She stayed for a period of 8 days with the accused as his wife and then she came to her parent's house With him for a short period and thereafter, she has been residing with her husband and also has been visiting her parents. After about 8 months of her marriage, according to their convention her father came to take her with him for the purposes of the delivery of her first child. It is stated by her that at that time her husband Abdul Rashid allowed her to accompany her father and said that if she would deliver a male child only then he would come to take her and if she would give birth to a female child then he would not come to take her. Her father was present at that time, when the accused made these remarks. She came to her father's house in the same clothes which she was wearing, as she was not allowed to take other articles or ornaments with her. On 30-5-1981 she gave birth to a female child. After this her husband Abdul Rashid divorced her. She instituted a suit for dowry and maintenance etc., in the Court of Judge Family Court Faisalabad. Her husband Abdul Rashid in his written statement levelled the charge of Zina against her. According to her, this was a false allegation levelled by Abdul Rashid against her and by doing so he had injured her reputation and that of her family knowingly. In cross-examination she has deposed that none of her in-laws visited her after delivery. She denied the defence suggestion that her rukhsati took place after 4 months of marriage. It is further denied by her that she informed the accused that she was having relations with some person before her marriage and that she admitted before the accused that she had got relations with one Abdul Haq. She further denied the defence suggestion that accusation of Zina against her was correct. It is admitted by her that she came to know of the accusation of Zina levelled against her from the written statement of the accused. It is

denied by her that due to litigation she had brought the present complaint falsely. She however, admitted that she and her elder sister Meena were married one and the same day. She denied the suggestion that the rukhsati of her said sister took place on the same day but not of her own. Hashmat Ali (P. W. 2) has stated that he knows the parties i. e., the complainant and the accused and he attended their marriage which took place about 2 years ago. Rukhsati of Mst. Safia complainant took place on the day of marriage and she stayed with the accused for 8 days after the marriage and then they came to her parents' house together and stayed for 2/3 days. She has been living with the accused as his wife since then. She delivered a female child 11 months after the marriage. It is further deposed by this witness that he was a member of the punchayat arranged by her father. The accused levelled charge of Zina against her. Then a second punchayat was arranged at Faisalabad. He along with Muhammad Tufail, Ali Muhammad, Rahmat Ali, Fazal Muhammad went to the house of Malik Muhammad Din, Councillor of the locality who summoned the accused and his father where the accused and his father again levelled the allegation of Zina against Mst. Safia, complainant. According to the witness the complainant held a good moral character and the accusation levelled by her husband was totally false. In cross examination he has admitted that he belongs to the brotherhood of Barkat Ali, father of the complainant but is not his uncle's son. He has got relations with her family and also attended all the ceremonies. He denied the defence suggestion that rukhsati of the complainant did not take place on the day of marriage. It is further denied by him that Maklawah of the complainant took place after 4 months of the marriage. He further denied that the accusation of Zina levelled by the accused against the complainant was true. It is also denied by him that the accused never levelled allegation of Zina in the punchayat convened at Sahiwal. The witness has further denied that the complainant does not hold a good moral character. Muhammad Tufail (P. W. 3) has also made a similar statement that the marriage of Mst. Safia, complainant with Abdul Rashid, accused took place on 4-7-1980 and the rukhsati took place on the same day. After 11 months of the marriage, she gave birth to a female child and then their relations became strained. Firstly a punchayat was convened at Sahiwal and then at the house of Malik Muhammad Din, Councillor and he was member of the punchayat at Faisalabad. It is stated by this witness that accused levelled the charge of Zina against the complainant and disowned the child. The father of the accused also levelled the same allegation against her. According to the witness Mst. Safia Bibi complainant holds a good moral character. In cross-examination the witness has stated that he is not related to either side but is on visiting terms with the complainant only in marriages or funeral ceremonies. He has denied the suggestion that the rukhsati of the complainant did not take place the same day. It is further denied by him that Maklawa ceremony took place after 4 months of the marriage. He further denied that he was making a false statement due to relationship and that a false complaint had been filed by Mst. Safia Bibi. Fazal Muhammad (P. W. 4) has also supported the complainant's version. According to him, he knew the complainant and the accused and their marriage took place two years before and the rukhsati took place on the same day.

He has also supported the convening of the punchayat at the house of Malik Muhammad Din, Councillor. He was a member of that punchayat.

The accused and his father levelled false charge of Zina against the complainant and disowned the child. In cross-examination this witness has stated that he is not from the brotherhood of the complainant nor he belongs originally to the same village. He however, admitted that he was on friendly terms with the complainant's father as they attend each others functions, if called. He denied the defence suggestion that complainant's rukhsati did not take place the same day. He further denied the defence suggestion that he was making a false statement because of relations and that the complainant had brought a false complaint due to enmity. The last witness produced by the com-

Wn, father Barkat Ali (P- W- de is also the special attorney of the complainant for the purposes of

the present case. He has placed on record the power of attorney (Exh. P. He has stated that Ms. Safia Bibi was married on 4-7-1980 and rukhsati took place the same RSN'RNAH * for, 8, days With her husband (accused) and then she

Left his house along with her husband. After 2/3 days both went back to Sahiwal and most of the period she has been living with her husband It is further deposed by this witness that he went to bring Mst.

house after 8/9 months of the marriage when she was pregnant for 6,7 months. At that time the accused said that "if she would deliver a female child then he would not come to have her company or to bring her to Sahiwal. If she would deliver a male child only then he would come to bring her. The complainant came empty handed' along with this witness 2/2\$ months after this bringing of the complainant to Faisaiabad, she gave birth to a female child. After the delivery Abdul Rashid, accused divorced his wife Mst. Safia Eibi. This witness has further stated that he tried to have reconciliation through Punchayat. Firstly punchayat was taken to oaniwal and the second punchayat was held at Faisaiabad at the residence of Malik Muhammad Din, Councillor. Abdul Rashid, accused and his father again levelled charge of Zina against Mst. Safia Bibi, complainant. She filed a suit for maintenance, dowry etc., before Judge Family Court, at Faisaabad. The accused submitted written statement Exh. P. B. before the said Court in which he levelled allegation of Zina against Mst. Safia Bibi and asserted that he had never performed sexual intercourse with the complainant after marriage. It was further asserted by the accused that Mst. Safia Bibi never lived with him as wife. It is further stated by this witness that Abdul Rashid accused brought a suit (Exh. P. C.) for recovery of Rs. 24000) against the complainant at Sahiwal, in which he asserted that the complainant was his legally wedded wife and had gone to her parent's house one year ago for attending a marriage. This witness has categorically stated that the accused had levelled totally false allegation of Zina against Mst. Safia Bibi knowing it to be false and with a view to injure her family- *In cross-examination this witness has stated that Tufail (P.W.) is not his uncle's son but he is from his brotherhood. He has however, admitted that Rahmat Ali is his real brother. It is further admitted by this witness that his elder daughter was also married the same day: "He however, denied the defence suggestion that rukhsati of Mst. Safia Bibi did not take place on the same day. He further denied the suggestion that Mst. Safia Bibi lived with him for four months after marriage. This witness has also admitted that the litigation is pending between him and the accused. He however, denied the defence suggestion that the charge levelled by the accused was true.

Abdul Rashid, accused in his statement recorded under section 342, Cr. F. C. denied the prosecution allegations. He however, admitted that his marriage with Mst. Safia Bibi complainant took place on 4-7-1980 and asserted that rukhsati took place after 4 months of the marriage. He further denied the prosecution allegation that Mst. Safia Bibi was pregnant from him when she was brought to Faisaiabad by her father and has alleged that he never performed any sexual intercourse with her from the date of marriage till divorce because he was unable to perform the sexual intercourse due to illness. When asked whether he levelled false charge of Zina against the complainant to injure her reputation, firstly, in the punchayat held, at the house of Malik Muhammad Din and secondly he alleged Zina against the complainant in written statement in the suit for maintenance brought by her, he denied this suggestion that he levelled the charge of Zina in the punchayat because no punchayat took place. He however, admitted that he levelled charge of Zina against Mst. Safia Bibi complainant in his written statement but that was true. When asked why complaint had been brought against him and why P.Ws. made statements against him, he replied as under

"I do not know the reason for the complaint but the facts are that it has been filed as a retaliation to my pronouncement of divorce against the complainant. The witnesses have made statements

against me because of their relationship and friendship with the complainant's father."

When asked if he would produce defence, he answered in the affirmative. In his supplementary statement recorded on 4-8-1982 Abdul Rashid, accused stated as under

'T was married to Safia four months before rukhsati. Rukhsati took place and she accompanied me to Sahiwal. I was having some sex problems therefore, I was not in a position to perform the sexual intercourse with Safia. When rukhsati took place Safia appeared to be pregnant. Safia stayed for 10/12 days. Then came to Faisalabad accompanying her mother. As we were having strained relations, she came back to Faisalabad. Six months after rukhsati the child was delivered by Safia. On this fact I immediately divorced her. I had also mentioned this fact in my divorce deed. The female child does not belong to me. I close my defence evidence."

4. Abdul Rashid, accused produced two witnesses in defence. Abdul Sattar (D. W. 1) has stated that Abdul Rashid accused was married two years and 3 months ago and the Nikah ceremony took place some time before marriage and rukhsati took place after 4 months of the marriage.

After 2/3 days of rukhsati, women folk started to talk that Mst. Safia Bibi was pregnant of at least 3/4 months. She went for the first time to the house of Abdul Rashid at the time of rukhsati. According to this witness, from the circumstances, it appears that the child does not belong to Abdul Rashid who had no access to the complainant prior to rukhsati. In cross-examination this witness has admitted that he was never present in Nikah ceremony or marriage or rukhsati and he never visited the house of the complainant. It was Abdul Rashid, accused himself who had informed the witness that a Nikah had taken place with one Safia. It is admitted by this witness that he belongs to the brotherhood of Abdul Rashid accused. It is further admitted by him that Abdul Rashid had brought him to the Court to give evidence and he had paid the expenses of the witness. This witness could not say with certainty if Abdul Rashid accused might have met Safia even before rukhsati because he never accompanied him. He denied the suggestion that rukhsati took place on the same day of marriage and that Safia did not visit the house of the accused immediately after marriage. The witness was informed by Akbar Bibi that Mst. Safia was pregnant. It is admitted by him that he had got no personal knowledge about this. Abdul Rashid accused never made these remarks before him. None of the members of the family of Abdul Rashid talked about the fact on the day of rukhsati or even after that Mst. Safia Bibi appeared to be pregnant before rukhsati. It is also stated by this witness that none from the accused side ever made any complaint about this fact. It is admitted

1986 Abdul Rashid v. Sana Bibi {Ch. Muhammad Siddiq, J) F S C If by him that at the time when the complainant was mature with delivery, she was brought to Faisalabad by her father. He denied his knowledge about any pmchayat held at Sahiwal. He also denied the suggestion that Mst. Safia was not pregnant at the time of rukhsati and that he was making a false statement because of Muhalledari and brotherhood of the accused. The second witness produced by the defence is Muhammad Aslam (D.W. 2). According to him, Abdul Rashid's Nikah took place two years and one month ago and there was no Barat. It was after 4 months of Nikah that rukhsati took place. After 4 days of rukhsati women started talking that Mst. Safia appeared to be pregnant for 3/4 months. She stayed with her husband and then came to Faisalabad. She delivered the child after 6 months of her rukhsati. In cross-examination the witness has denied the suggestion that he is the real brother of the accused. But he was on visiting terms with the accused family. He has admitted that he was not present in Nikah, marriage or rukhsati ceremony but he was verbally informed by the father of the accused that they had gone to Faisalabad to attend the marriage of Safia's sister and Safia Jiad been given in Nikah to the accused the same day. It was openly published in the village by the women-folk that Safia was pregnant before rukhsati but he could not give the name of any such woman. It is further stated

by this witness that he was informed by the accused that he was under treatment for some sex disease and Sufi of Chak No. 73 who was a Hakeem was treating the accused. The witness never asked the accused if he was suffering from some disease.

5. The trial Court vide impugned judgment dated 7-8-1982 found Abdul Rashid accused guilty under section 11 of the Ordinance and sentenced him to undergo R. I. for one year plus 10 stripes and a fine of Rs. 2,000 or in default of payment of fine further R. I. for 3 months.

6. Hence this appeal.

7. It is vehemently contended by Mr. Nimat Khan, the learned counsel for the appellant that charge of Qazf under section 11 of the Ordinance has not been legally proved against the appellant. According to Mst. Safia Bibi, complainant, when her father Barkat Ali came to her in-law's house to take her to his hoU'e for the purposes of first delivery as is customary, Abdul Rashid, appellant had said at that time that if she gave birth to a male child then he would come to take her back and if she would give birth to a female child then he would not come to have her. This version is supported by Mst. Safia Bibi complainant as well as her father Barkat Ali P. W., who was present at that occasion. I have minutely scrutinized their statements and find that this aspect of the case has been duly established by these two witnesses. The defence could not shake their credibility on this 4 issue. In fact no specific question in cross-examination was put to these witnesses about this particular aspect of the case. In these circumstances

I find that the prosecution has established this issue against the accused appellant. This conclusion gets support from other circumstances of the case. If the appellant really did not have any sexual intercourse with her due to his incapability and Mst. Safia Bibi, complainant was already pregnant from somebody else and her character was really loose and the women folk had started talking about her pregnancy immediately after her arrival in the house of the appellant immediately after the marriage then he should have disclosed this fact to her and other people openly.

There is nothing on the record to show that the appellant indicated this fact in any manner to anyone before the actual delivery. If he was really impotent and

unable to perform sexual act due to any reason and his wife Mst. Safia Bibi was already pregnant when she came to his house after marriage, like ordinary prudent husband he should have shown his resentment in some form against her pregnancy. Silence on his part is a clear indication that the version of his wife Mst. Safia what he said about the result of her delivery-the child being male or female, is true.

8. According to Ms.:. Safia, respondent, her husband Abdul Rashid, appellant made allegation of Zina against her at three different occasions- in the punchayat at Sahiwal and then in the punchayat at the residence of Muhammad Din, Councillor, Faisalabad and in his written statement Exh.

P. B. filed before the Judge Family Court, Faisalabad. Although the prosecution has produced several witnesses to prove the allegation of Zina made by the appellant before the punchayats at Sahiwal and Faisalabad yet even if this part of the case is kept out of consideration the factum of levelling of allegation of Zina by Abdul Rashid, appellant against Mst. Safia stands otherwise proved beyond any shadow of doubt. It is an admitted fact that Abdul Rashid, appellant in his written statement Exh.

P. B. filed before the Judge Family Court, Faisalabad, has levelled this allegation of Zina against

Mst. Safia and also disowned the female child of Safia, respondent. Further, he has admitted this fact in his statement recorded under section 342, Cr. P. C. While replying question No. 4, Abdul Rashid, accused appellant in categorical terms admitted that he levelled charge of Zina against Mst. Safia, respondent in his written statement but that was true. It is further admitted by him that the female child did not belong to him. In support of this allegation the appellant has advanced several reasons. One stand taken by the appellant is that he was married to Safia, respondent 4 months before her rukhsati. In other words, her rukhsati took place after 4 months of her marriage on 4-7-1980 and when she went to the house of her husband the women folk started talking that she was already pregnant by 3/4 months. Whether rukhsati took place on the day of marriage or 4 months thereafter, is a pure question of facts which has to be proved by evidence direct or circumstantial. It is an admitted position that the marriage of the appellant with Mst. Safia took place on 4-7-1980. As regards her rukhsati there are two versions. According to the complainant and her father Barkat Ali (P. W.) her rukhsati took place on the same day i. e., 4-7-1980. On the other hand the defence suggestion is that her rukhsati took place 4 months after 4-7-1980. No reason has been assigned by the appellant as to why the rukhsati did not take place on the day of marriage but 4 months thereafter. It is not denied that Mst. Safia was major on the day of marriage and there is nothing on the record to suggest why her rukhsati could not take place on that day. General practice in our society is that marriage and rukhsati take place on the same day unless there is a special reason to show to the contrary. If for example Mst. Safia had been minor or there was some other financial problem then rukhsati could take place subsequently. Even then there should be some reason for performing Nikah without rukhsati. It is an admitted fact that the marriage of elder sister of Mst. Safia also took place on the same day and there were, therefore, two barats on the same day which reached the house of Barkat Ali (P. W.) father of the girls. The defence has suggested in cross-examination to practically all prosecution witnesses that the rukhsati of Mst. Safia took place 4 months after her marriage but all have categorically denied the defence suggestion and have asserted that in fact rukhsati took place on the same day of marriage i. e., 4-7-1980. The defence has suggested no reason why rukhsati had taken place 4 months after the marriage. The defence has produced no positive evidence in support of this suggestion. Abdul Sattar (D. W. 1) has asserted in his examination-in-chief that rukhsati took place after 4 months of marriage but in cross-examination he has admitted that he was never present in the Nikah ceremony or marriage or rukhsati and he never visited the house of the complainant Mst. Safia. It is further stated by this witness that it was Abdul Rashid, accused himself who had informed him that his Nikah had taken place with one Safia. After this admission the testimony of this witness has lost all significance. His statement is based upon mere hearsay. Same is the position of Muhammad Aslam (D. W. 2). He has also admitted in cross-examination that he was not present in Nikah, marriage or rukh ati ceremony but was informed verbally by the father of the accused that they had gone to Faisalabad to attend the marriage of Safia's sister and Safia had been given in Nikah to the accused the same day. It is not disputed that if the marriage and rukhsati had taken place on different dates, 'he same could easily be proved by producing direct evidence of persons who had participated in those ceremonies. Thus, it is established beyond any > doubt that the marriage and rukhsati of Mst. Safia took place on the same day i. e. 4-7-1980 and not 4 months thereafter, as suggested by the defence.

Regarding the allegation that Mst. Safia, respondent was pregnant 4 months, when she reached her husband's house on the first occasion after her marriage, the defence has not produced any direct evidence in support of it. Abdul Rashid appellant has made this allegation in his statement and this suggestion has also been made in cross-examination to the prosecution witnesses, who have denied the same. Abdul Sattar and Muhammad Aslam (D. Ws.) have asserted that 2/3 days after her rukh ati, the women folk were talking about Safia's pregnancy but both these witnesses as mentioned above, have no direct knowledge and their statements were based upon hearsay evidence. It has already been held above that marriage and rukhsati of Mst. Safia took place on

the same day i. e., 4-7-1980 and admittedly she gave birth to female child on 30-5-1981, hence the question,, of pregnancy for 3/4 months on her first arrival in appellant's house would ° not arise. Moreover, the conduct of the appellant as an ordinary husband goes against him. If his wife was really piegnant before her rukhsati, and women folk were talking about it. he should have indicated his resentment or protest against it in some form. He could disclose this to Mst. Safia or her father and mother. This was a serious matter and, therefore, on this issue he could be justified even to divorce her. Thus, the proper stage for divorce on the alleged ground, was, that the moment he came to know about her said pregnancy, he should have reacted in that manner and should have divorced his wife Mst. Safia at that stage. There was no legal bar in his way not to do so, but it is an admitted fact that he neither divorced his wife at that stage nor otherwise he protested against such pregnancy to anyone in any manner. As mentioned above he divorced his wife on 19-12-1981 when she had already given birth to a female child earlier on 30-5-1981. This circumstance also supports the above version of the wife and goes against the defence suggestion.

10. Another circumstance suggested by the defence in this behalf is that Abdul Rashid was having some sex problems and, therefore, was not in a position to perform sexual intercourse. In other words, the appellant was not capable to perform sexual act and, therefore, a female child born to his wife Mst. Safia could not be his legitimate child. It is not disputed that in such a situation if the appellant was claiming to be impotent or was incapable to perform sexual act and was suffering from some sex disease, the onus would be upon the defence to prove his impotency or sexual incapability. Again such impotency or incapability to perform sexual act could be established through medical evidence but the defence failed to produce any such evidence to substantiate this plea. Moreover, the appellant could not remain mum till the female child was born but he should have raised this issue at the earliest when pregnancy of his wife Mst. Safia became visible or known. Thus, silence on the part of Abdul Rashid appellant till the birth of the female child also goes against his bona fide and supports the version of Mst. Safia, complainant.

(b) the accusation is made to any of those who have 'lawful authority' over that person with respect to the subject-matter of accusation.

in his written statement filed before the Judge Family Court where the suit for maintenance etc., was pending. According to the defence counsel the expression 'lawful authority' would include that trial Court i. e., the Judge, Family Court as according to him, during the pendency of this suit lhat Court will have lawful authority over the minor female child and her mother. The expression lawful authority has neither been defined in the Ordinance nor in the Penal Code but it has been defined in several other statutes. In the Constitution of Pakistan this expression has been used in Article 199 and several other Articles and has been the subject-matter of interpretation before the superior Courts including the Supreme Court. The expression 'lawful authority' has also occurred in some other statutes and has also been defined in law dictionaries. The expression 'lawful authority' implies that authority which is recognised, authorised, supported or warranted by law and is not forbidden by law. In other words this expression include both positive and negative aspects of the matter. The learned defence counsel has not been able to point out any provision of law authorising the Judge Family Court while dealing with suit for maintenance of minor child as having lawful authority over such child and her mother. It is established principle that in a case of this type a person who raises such a plea the burden of onus would be upon him to establish the same but the appellant has failed to discharge the same. Further 'lawful authority' means that legal authority where relationship of a guardian and ward is established between them and such relationship is established by such means which are lawful and legitimate. The Judge Family Court in a case of this type is neither a natural guardian nor a legal L guardian or a guardian appointed or made in lawful manner by a competent person or authority. The Judge Family Court

in the instant case has nothing to do with the care and custody of a minor female child or her mother. It is not disputed that the expression 'lawful authority' has been used in general sense to cover any person who could have lawful authority over the ward e. g. a husband can legitimately claim lawful authority over his wife and his children. Similarly father/mother can have lawful authority over his/her children. A guardian can also have lawful authority over his ward whether appointed by the Court or otherwise.

Similarly a master can claim such authority over his servant. I however, fail to understand how in a suit for maintenance of a minor child, the Judge Family Court can be said to have any such lawful authority over that child or her mother Mst. Safia.. As mentioned above the dispute before the Judge Family Court is regarding the maintenance of the female child etc., and there is no dispute regarding appointment of guardian etc. of that female child. In the circumstances of the case, therefore, I feel no hesitation to hold that the Judge Family Court by no stretch of imagination can be said to have lawful authority over Mst. Safia or her child as contemplated by second exception of section 3 of the Ordinance.

The result is that both the ingredients of the second exception have not been established in the present case and consequently this exception cannot be attracted and applied to the facts of the present case.

15. Another argument advanced by Mr. Nimat Khan, the learned counsel for the appellant is that since maintenance proceedings are still pending before the Judge Family Court and the appellant is likely to succeed in proving the contents of his written statement filed before that Court, therefore, his trial under Qazf Ordinance could not proceed or the said criminal proceedings should have been stayed till the final decision by the Judge Family Court because the decision of the Judge Family Court regarding legitimacy and illegitimacy would be binding on the criminal Court, as that judgment would be judgment in rem under section 41 of the Evidence Act. The jurisdiction of a Family Court under section 5 of West Pakistan Family Courts Act, 1964 is exclusive to entertain, hear and adjudicate upon matters specified in the Schedule namely,-

- (1) Dissolution of marriage;
- (2) Dower;
- (3) Maintenance;
- (4) Restitution of conjugal rights;
- (5) Custody of children ;
- (6) Guardianship ; and
- (7) Jactitation of marriage.

In the instant case we are concerned only with 'maintenance' as suit filed by Mst. Safia before the Judge Family Court is to claim maintenance for her female child etc. We will, therefore, examine the nature of the jurisdiction of the Family Court regarding such 'maintenance'. For the purposes of 'maintenance' section 20 of the Act is relevant which is reproduced below

‘20. Investment of powers of Magistrates on Judges.-Government may invest any Judge of a Family Court with powers of Magistrate, First Class to make order for maintenance under section 488 of the Code of Criminal Procedure, 1898.’

By Notification No. Integ. 10-31/64-1, dated the 5th April, 1966, the Governor of West Pakistan in exercise of powers conferred by section 20 of the West Pakistan Family Courts Act, 1964 referred to above, has invested all Judges of the Family Courts with powers of Magistrates of First Class to make orders for maintenance under section 488 of the Code of Criminal Procedure. This notification reads as under

“In exercise of the powers conferred by section 20 of the West Pakistan Family Courts Act, 1964 (XXXV of 1964), the Governor of West Pakistan is pleased to invest all Judges of the Family Courts with powers of Magistrates of First Class to make orders for maintenance under section 488 of the Code of Criminal Procedure, 1898 (V of 1898).”

Thus, a Family Court functions in dual capacity. It acts as matrimonial Court with respect to matters of dissolution of marriage etc., and it also acts as a quasi criminal Court while dealing with maintenance under section 488, Cr. P. C. In the instant case we are only concerned with ‘maintenance’. On the legal plan if the Family Court decides a matrimonial issue its judgment will be binding not only on the parties in the case but upon the whole world and such judgments would be termed as judgment in rem. The question however which arises for consideration is whether in the instant case the judgment of the Family Court regarding the maintenance of a female child and Mst. Safia would be a judgment in rem or not. As mentioned above while deciding the question of maintenance the Family Court would be exercising powers of a Magistrate First Class to make orders under section 488 of the Code of Criminal Procedure and, therefore, will be acting as a quasi criminal Court and consequently its judgment will be judgment in personam not judgment in rem.

16. As regards the general question that the same issue of legitimacy or or illegitimacy of the female child is the subject-matter before Family Court,

it is well-settled now that criminal proceedings and civil proceedings can side by side proceed between the same parties because the functions of criminal and civil Courts are different and each Court has to decide the case in accordance with the evidence produced by the parties before it. In other words, one Court will not be influenced by the finding of fact given by the other Court between the parties. For instance, in the instant case the criminal Court was to decide whether the prosecution had established the guilt of the accused beyond any doubt or not and this was to be decided on the evidence produced by the parties before that Court. The trial Court could not rely upon any finding of fact given by the Judge Family Court regarding any issue between the parties. Similarly the Family Court is to decide the case on the basis of evidence produced by the parties before it and it will not be influenced by any finding of fact given in the criminal case. It is well-settled now that all proceedings must be decided on their own facts and the judgment of the Family Court/Civil Court will not be relevant for the purposes of criminal case pending before this Court. The Privy Council in the case of *Kumar Gopika Raman Roy v. Atal Singh and others* (1) enunciated this principle in the following words

“In their Lordships’ opinion these statements are not admissible as evidence of facts having been realized from the defendants in that suit. The Indian Evidence Act does not make finding of fact arrived at on the evidence before the Court in one case evidence of that fact in another case.”

The above principle was followed by the Supreme Court of Pakistan in *Mst. Naseer Begum's* case late Chief Justice Hamoodur Rehman while delivering the judgment of the Full Bench was pleased to observe as under:- “Learned counsel appearing in support of this petition reiterates the contention that the judgment of the civil Court should have been taken into account, before arriving at a decision in the criminal case. We are unable to agree, because, as pointed out by

the Privy Council in the case of *Kumar Gopika Raman Roy v. Atal Singh* 'the Evidence Act does not make a finding of fact arrived at on the evidence before the Court in one case evidence of that fact in another case.' Thus, a judgment in a civil Court, as pointed out by M. Munir in his *Law of Evidence*, 'is not admissible in a criminal proceeding to establish the truth of the facts upon which it is rendered. In a criminal trial it is for the Court to determine the question of the guilt of the accused and it must do so upon the evidence before it.'

The position would be the same with regard to a judgment of a civil Court in a subsequent criminal action. In this view of the matter, we are of the opinion, that the trial Magistrate and the High Court rightly did not take the findings of the civil Court into account in determining the guilt of the accused in the criminal case."

Justice Kaikaus as he then was in *Mst. Muni's case* (3) held that the result of civil suit is not binding on the criminal Courts and criminal proceedings cannot be stayed. Earlier the Lahore High Court in its full Bench decision *Kashyap v. Emperor* (4) answer the following reference in the negative

"When there are concurrent proceedings covering the same ground

(1) A I R 1929 P C 99 (2) 1972 S C M R 584

(3) PL D 1956 Lah. 403 (4) A I R 1945 Lah. 23

before a criminal Court and a civil Court, the parties being substantially the same, would the judgment of the civil Court, if obtained first, be admissible in evidence before the criminal Court in proof or disproof of the fact on which the prosecution is based ?"

Similar view was taken by the Calcutta High Court in A I R 1932 Cal. 293. Thus following the principle enunciated by the Privy Council, the Supreme Court of Pakistan and other superior Courts in this sub-continent, -it can safely be held that the civil proceedings pending between the parties before the Judge Family Court regarding maintenance have nothing to do with the present criminal prosecution of Abdul Rashid appellant. Any finding of fact or inference drawn in the civil proceedings will have no relevance before the criminal Court where the guilt or criminality of the accused is to be determined on the evidence produced by the parties before that Court. The judgment by the Judge Family Court in the suit for maintenance of her minor female child filed by Mst. Safia could not be a judgment in rem but judgment in personam. I, therefore, find no force in this contention-or plea.

17. As regards the allegation of disowning the female child by Abdul Rashid, appellant, the Supreme Court has already settled this issue in *Hameeda Begum's case* (1) that under the Muhammadan Law the paternity of a child born in lawful wedlock is presumed to be in the husband of the mother without any acknowledgment or affirmation of parentage on his part and such child follows the status of the father. Reliance in this behalf can be placed upon the following observations of their Lordships

"Under the Muhammadan Law, as in all civilised systems of law, the child follows the bed (firash), that is, the paternity of a child born in lawful wedlock is presumed to be in the husband of the mother without any acknowledgement or affirmation of parentage on his part and such child follows the status of her father. According to the Sunni schools the presumption of legitimacy is so strong that in cases where a child is born after six months from the date of marriage and within two years after dissolution of the marital contract, either by the death of the husband or by divorce, a simple denial of paternity on the part of the husband would not take away the status of

legitimacy from the child. Of course, presumption based on the bed is subject to the right of disapproval on the part of the husband for want of access. This right has to be exercised in accordance with the custom of the locality either on the day of the child's birth or at the time of purchasing articles necessary in view of its birth or during the period of rejoicing. If the husband is absent, he must disown the child immediately he is informed of its birth.

The shortest period of gestation, according to all the schools, is six months. If, therefore, a child is born within six lunar months of the marriage, no affiliation would take place unless the man acknowledge it to be his issue. In other words, it is the right of the man to legitimate a child born within this time by acknowledging expressly or impliedly that the conception took place in wedlock. According to the Hanifis, contrary to the Shafi'is, the husband is entitled to claim

. the child born in wedlock as his, even if he had no access to the wife. 1

If the husband wishes to repudiate a child so born, he can only do so by the procedure of *la'an* that is to say, if he swears before the Qadi that the child is illegitimate and fruit of adultery, in which case the Court will pass a decree not only dissolving the marriage but declaring the child to be illegitimate."

The admitted factual position in the present case is that marriage between Abdul Rashid, appellant and Mst. Safia respondent took place on 4- 7-1980 the female child was born on 30-5-1981 and she was divorced by the appeal-19-12-1981. He disowned the child in his written statement filed on

18. For the foregoing reason this appeal fails and the same is hereby dismissed. The conviction and sentences of Abdul Rashid, appellant are maintained. He is on bail. He shall be taken into custody forthwith to undergo the unexpired period of imprisonment.

M' B' A' Appeal dismissed.

easylaw Case No.
1133511

Download Case